

IN THE LABOUR COURT OF SOUTH AFRICA, CAPE TOWN

CASE NUMBER: TO BE ALLOCATED

NOTICE OF MOTION
(CLASS CERTIFICATION UNDER RULE 16A)

In the matter between:

WILBUR WILLIAM MATTHEE

(Acting in his personal capacity and as representative plaintiff on behalf of the class defined below)

Applicant

and

MEDSCHEME HOLDINGS (PTY) LTD

(Registration Number: 1983/003221/07)

A wholly owned subsidiary of Afrocentric Health Ltd (JSE: ACT)

Respondent

TO: THE RESPONDENT

TAKE NOTICE that the Applicant intends to apply to the above Honourable Court on a date and at a time to be allocated by the Registrar for an order in the following terms:

PART A: CLASS CERTIFICATION ORDER (RULE 16A)

1. That this matter be certified as a class action in terms of Rule 16A of the Rules of the Labour Court.
2. That the class be defined as follows:

"All current and former employees of Medscheme Holdings (Pty) Ltd who, during the period 1 January 2023 to 31 December 2025 (the 'Class Period'), were subjected to one or more of the following unlawful payroll practices, retaliatory conduct, or discriminatory treatment:"

- (a) Salary deductions exceeding 25% of gross remuneration without prior written consent, in breach of section 34(2) of the Basic Conditions of Employment Act 75 of 1997 ('BCEA');

- (b) Salary deductions made without any written consent whatsoever, in breach of section 34(1) of the BCEA;
- (c) UIF contributions deducted from remuneration but not declared or remitted to the Unemployment Insurance Fund, in breach of section 6 of the Unemployment Insurance Contributions Act 4 of 2002 ('UICA');
- (d) Retaliatory payroll conduct or disciplinary action following the making of protected disclosures, complaints of discrimination, or reports of workplace safety concerns, in breach of section 3 of the Protected Disclosures Act 26 of 2000 ('PDA');
- (e) Discriminatory treatment on grounds of gender identity, psychiatric disability, or any other ground listed in section 6(1) of the Employment Equity Act 55 of 1998 ('EEA');
- (f) Systematic loading of punitive payroll entries or deductions on or immediately before pay day (the 23rd of each month or the last business day before the 23rd) as a deliberate mechanism to maximise financial and psychological pressure on employees.

3. That the Applicant, Wilbur William Matthee, be appointed as the representative plaintiff for the class.

4. That the common questions of law and fact to be determined in this class action include, but are not limited to:

- (a) Whether the Respondent's payroll practices during the Class Period systematically breached sections 34(1) and 34(2) of the BCEA;
- (b) Whether the Respondent systematically failed to declare and remit UIF contributions in breach of section 6 of UICA;
- (c) Whether the Respondent used payroll practices as a mechanism of retaliation against employees who made protected disclosures, in breach of section 3 of the PDA;
- (d) Whether the Respondent's conduct constitutes a systemic failure of good faith employment practices and institutional governance;
- (e) What relief, including restitution, compensation, declaratory orders, and costs, is appropriate for the class.

5. That a notice be issued to all potential class members in the form annexed to the Founding Affidavit as Annexure CLASS1, advising them of:

- (a) The certification of this matter as a class action;
- (b) The definition of the class;
- (c) The common questions to be determined;
- (d) Their right to opt in to the class within 90 (ninety) days of the notice;
- (e) Their right to opt out of the class if they wish to pursue individual claims;
- (f) The consequences of opting in or opting out.

6. That the notice referred to in paragraph 5 above be disseminated to potential class members by the following methods:

- (a) Publication on the Respondent's internal employee communication channels, including email and intranet systems;

- (b) Physical posting at the Respondent's registered office and all operational sites;
 - (c) Email to all current and former employees for whom the Respondent holds email addresses;
 - (d) Publication in one national newspaper with circulation in the Western Cape.
7. That the costs of disseminating the notice be borne by the Respondent.
8. That class members be permitted to opt in to the class action within 90 (ninety) days of the date of dissemination of the notice.
9. That the Applicant be authorised to act on behalf of all class members who opt in, and to make decisions regarding the conduct of the litigation in the best interests of the class as a whole, subject to Court supervision.

PART B: SUBSTANTIVE RELIEF

10. In respect of the representative plaintiff, Wilbur William Matthee, the relief claimed is set out in full in paragraphs 12.1 to 12.5 of the Founding Affidavit and is incorporated herein by reference. The total individual claim is R9,384,811.77 plus costs on the attorney-and-own-client scale.
11. In respect of the class as a whole, the Applicant seeks:
- (a) A declaratory order that the Respondent's payroll practices during the Class Period constituted systematic breaches of sections 34(1) and 34(2) of the BCEA, section 6 of UICA, and section 3 of the PDA;
 - (b) An order directing the Respondent to conduct a full audit of all salary deductions made during the Class Period and to identify all employees subjected to deductions in breach of BCEA section 34;
 - (c) An order directing the Respondent to make restitution to each affected class member of all unlawfully deducted amounts, plus interest at the prescribed rate from the date of each unlawful deduction to the date of payment;
 - (d) An order directing the Respondent to conduct a full audit of UIF contributions deducted but not remitted during the Class Period, and to remit all outstanding contributions to the Fund with penalties and interest;
 - (e) A declaratory order that the Respondent's conduct constitutes a systemic failure of good faith employment practices and institutional governance, warranting costs on a punitive scale;
 - (f) Costs of suit on the attorney-and-own-client scale, including the costs of class certification, notice dissemination, and administration;
 - (g) Such further and/or alternative relief as this Honourable Court deems just and equitable.

PART C: INTERIM RELIEF

12. Pending the determination of the class certification application and the final determination of this matter, the Applicant seeks an order:

(a) Interdicting the Respondent from destroying, altering, or disposing of any payroll records, UIF remittance records, Oracle system entries, or other documentation relevant to the class claims for the Class Period;

(b) Directing the Respondent to preserve all such records in their current state and to provide the Applicant with full discovery thereof within 30 (thirty) days of this order.

THE GROUNDS UPON WHICH THE ABOVE RELIEF IS SOUGHT ARE:

1. The facts set out in the Founding Affidavit of the Applicant.
2. The facts set out in the Rule 16A Certificate sworn 9by the Applicant.
3. The requirements for class certification under Rule 16A of the Rules of the Labour Court are satisfied, in that:
 - (a) The class is sufficiently numerous such that joinder of all members is impracticable;
 - (b) There are questions of law and fact common to the class;
 - (c) The claims of the representative plaintiff are typical of the claims of the class;
 - (d) The representative plaintiff will fairly and adequately protect the interests of the class;
 - (e) A class action is superior to other available methods for the fair and efficient adjudication of the controversy.
4. The provisions of the Labour Relations Act 66 of 1995, the Basic Conditions of Employment Act 75 of 1997, the Unemployment Insurance Contributions Act 4 of 2002, the Protected Disclosures Act 26 of 2000, and the Employment Equity Act 55 of 1998.
5. The provisions of Rule 16A of the Rules of the Labour Court.
6. The common law principles of unjust enrichment and restitution.
7. Such further and/or alternative grounds as may be advanced at the hearing of this application.

KINDLY TAKE NOTICE THAT:

1. The Applicant's attorneys are the Applicant in person, whose address for service of all documents in this matter is:

[Physical address to be inserted]

Email: info@ethichawks.co.za

Alternative email: wilburmat@gmail.com

2. If you intend to oppose this application, you are required to:

(a) Notify the Applicant or the Applicant's attorney in writing of your intention to oppose this application within 10 (ten) days of service of this Notice of Motion;

(b) Deliver your answering affidavit within 15 (fifteen) days after delivery of notice of your intention to oppose;

(c) Your answering affidavit must be accompanied by all documentary evidence upon which you intend to rely.

3. If you fail to comply with the above, the Applicant may apply for an order in the above terms without further notice to you.

WILBUR WILLIAM MATTHEE

Applicant in Person

info@ethichawks.co.za | wilburmat@gmail.com

Date: _____

TO: MEDSCHEME HOLDINGS (PTY) LTD

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